

April 26, 2025

Commissioner Donald Palmer
Commissioner Benjamin W. Hovland
U.S. Election Assistance Commission
633 3rd Street NW, Suite 200
Washington, DC 20001

cc: Andrew Sassoon, FOIA Public Liaison
Seton Parsons, Associate Counsel

Dear Commissioners Palmer and Hovland:

On behalf of the Michigan Fair Elections Institute (MFEI), a 501(c)(3) nonprofit organization dedicated to election integrity research and public education, I write to express strong support for the proposed changes to the EAC's audit standards currently under consideration. We urge the Commission to adopt all four of the following reforms.

- 1. Independent Audit Committee.** Administration of election audits should be shifted from entities within the election system to an independent audit committee. Audits conducted by parties with a stake in the outcome cannot command public confidence. Independence is the foundation of credibility.
- 2. Enhanced County-Level Reporting.** Audit standards should require additional reporting on county performance, beyond mere verification of results. Granular, jurisdiction-level data is essential for identifying systemic weaknesses and ensuring accountability at every level of election administration.
- 3. Full Access to Election Artifacts.** Auditors must have access to all election artifacts, with appropriate protections to maintain voter confidentiality. Audits that cannot examine the underlying record are audits in name only
- 4. States that receive HAVA grant funding** should be subject to substantive, financial audits in compliance with Yellow Book, Generally Accepted Government Accounting Standards (GAGAS). Violators should have their funds clawed back and individuals should be held accountable. See "Part B: Inadequate Scope of Federal Audits Systemic Deficiencies in Government Agency Audits of HAVA grants and an Urgent Request for the Government Accountability Office to Investigate," *MFEI Investigation of Michigan Elections*, Sept. 2025, pages 64-70. https://b6d83fed-d9cb-4cb1-9e2f-60cfa1575f8d.filesusr.com/ugd/aa3979_edb360768ac042f0aa5245902b401b52.pdf

MFEI has conducted extensive comparative research on election administration structures across the states. We have seen firsthand how the absence of independent oversight and complete audit access undermines public trust and leaves systemic vulnerabilities undetected. These four reforms would constitute a meaningful and durable improvement to the national audit standard. An excerpt from MFEI's report illustrates the fundamental issues currently hampering the EAC's effectiveness:

Two core questions plague the audit of Michigan's usage of federal HAVA funds.

1. Did federal auditors properly consider stakeholder input about Michigan's election integrity concerns when conducting the \$49.88 million HAVA grant audit in 2024? 2. What did the federal auditors do to test whether Michigan's certification was in compliance with all HAVA requirements as required by GAGAS 8.90 and 8.98? It appears the federal auditors focused narrowly on financial compliance under 2 CFR 200 while failing to evaluate critical HAVA mandates, such as voter access, election technology security, voter education, and adequate voter roll maintenance, as required by Titles I and II (52 U.S.C. §§ 20901, 21081).

We thank the Commission for its consideration and encourage prompt adoption of these changes. A strong final standard will provide model language that state legislatures across the country can act upon. Please do not hesitate to contact us if MFEI can provide additional research or testimony in support of this effort.

Respectfully submitted,

Patrice Johnson

Chair and Co-Founder

Michigan Fair Elections Institute

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